

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &  
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT  
(FMC#011982) consisting of EVERGREEN MARINE  
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)  
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN  
MARINE (HONG KONG) LTD., AND EVERGREEN  
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

**DOCKET NO. 24-12**

**JOINT STATUS REPORT  
AND MOTION TO EXTEND DEADLINES**

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.<sup>1</sup> (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and hereby submit this joint status report and motion to extend deadlines, and in support thereof state that good cause for the requested extension exists, as follows:

1. On May 20, 2025, a status conference was held before ALJ Chintella to discuss the status of the Parties’ document productions, the extent to which technical issues continued to cause delay, and other issues related to the schedule. That Status Conference resulted in the current Scheduling Order.

2. Since the May 20, 2025 Status Conference, the parties have been working diligently

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<sup>1</sup> BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

to move discovery in the case forward toward completion. The parties have continued document discovery, including the production of numerous documents by both Evergreen and BBY. In addition, BBY provided supplemental responses to Evergreen's First Set of Interrogatories, dated July 15, 2025. Those supplemental responses are the subject of a pending motion to compel. BBY also submitted Responses and Objections to Evergreen's Second Set of Interrogatories, dated August 5, 2025, which responses Evergreen is reviewing. The Parties have conducted or scheduled (prior to the current deposition deadline of August 29, 2025) the depositions of thirteen (13) party witnesses, in both the United States and Taiwan, including: (i) Paul Pastor; (ii) Patrick Hackett; (iii) David Kastin in both his personal capacity and as a corporate representative of BBB; (iv) Reid Klosowsky; (v) Hubert Tsui; (vi) Michael Goldberg; (vii) Abdel El-Hely; (viii) Mac Kellet; (ix) James Yang; (x) Justin Chiu; (xi) Richard Hsu; (xii) Vincent Chen; and (xiii) Jeff Sun. The Parties also have served subpoenas on six (6) non-party witnesses. The non-party witnesses include: (i) Yusen Logistics (Americas) Inc.; (ii) Knight Transportation Inc.; (iii) Pacific Drayage Services LLC; (iv) EDRA Y 2020 LLC; (v) Swift Transportation Co. of Arizona LLC; and (vi) Allport Cargo Services (USA) Ltd. Only one of the non-party witnesses has provided the documents demanded by the subpoenas. On Friday, August 15, 2025, non-party witness Yusen Logistics produced approximately 22,000 documents pursuant to the Yusen subpoena. As of August 18, 2025, BBY's document storage service provider Akerman was still converting the documents Yusen produced to be readable, as they had been sent as single-page PDFs, rather than multipage PDFs or single-page tiffs, which is the usual format. Akerman has estimated completion of conversion of the files overnight into August 19, 2025. Meaning BBY will not even be able to review a single document from Yusen until tomorrow, earliest.

3. At the time of the May 20, 2025 Status Conference, the Parties did not know the full extent of witnesses to be deposed much less their availability during the period remaining. The

Parties also did not know the extent of the need for non-party documents and witnesses, as more fully described below. The current schedule involves depositions and witness preparation on nearly every business day in August. During the last week of August, the parties will be conducting depositions of witnesses in the United States during the day and depositions of witnesses in Taiwan at night, holding five depositions in one week to accommodate the current schedule. Counsel for the parties have made great personal sacrifices to accommodate the current schedule including missing previously planned (and paid for) personal vacations with family and flying halfway around the world to prepare and defend witnesses. Despite these herculean efforts, there is significant document discovery and several depositions left to be completed, primarily from the non-party witnesses that have been subpoenaed.

4. BBY's supplemental interrogatory responses and the testimony of BBY former employee witnesses Paul Pastor, Patrick Hackett and Reid Klosowsky has revealed that BBY used Yusen Logistics as its Ocean Freight Manager and Customs Broker. Evergreen has learned that this means that all BBY's bookings with ocean carriers were made by and through Yusen Logistics. Pastor, Hackett and Klosowsky testified that information relevant to BBY's carriage during the 2020 and 2021 shipping years might be available from BBY's Ocean Freight Manager, non-party Yusen Logistics. Complainant and Respondents have each served their own subpoenas on Yusen Logistics and just received responses to the document demands in those subpoenas on this past Friday. The Parties do not yet know whether the documents produced are responsive to the demands or whether they are comprehensive. What the Parties do know is Yusen has produced in excess of 20,000 documents. The Parties also require the testimony of Yusen's employees. Those depositions cannot proceed before the Parties have an opportunity to review the documents just produced by Yusen, although the Parties have already been in touch with counsel for Yusen to arrange scheduling of such depositions once the Parties have been able to conduct such a review. Thus, the Parties

require additional time to review the Yusen production and conduct the depositions of one or more Yusen witnesses.

5. Accordingly, based solely upon the necessity for Yusen's testimony and documents, in order for the Parties to each have a fair opportunity to present their respective cases, the Parties respectfully contend that the current discovery deadline needs to be extended. Yusen also consents to the Parties' request for an extension of the discovery deadline.

6. Counsel for the Parties and Yusen agree that, under the circumstances, this Joint Status Report and Motion to Extend Deadlines is warranted for good cause and that extreme prejudice to both Parties would result if an extension of time to complete discovery is not granted.

7. The Parties have conferred extensively to arrive at the following proposed revised schedule, including holding a meet and confer on August 18, 2025, to discuss how to move forward.

8. Claimant is seeking approximately \$86,000,000 in reparations in this case. Given the scope and complexity of the claims and defenses, and the challenges posed by the large number of non-party documents and depositions, the Parties believe it would be most effective, efficient and preserve the Parties' due process rights by allowing the Parties to move forward with this case on the following proposed revised schedule:

|                    |                                                                      |
|--------------------|----------------------------------------------------------------------|
| October 31, 2025   | Parties complete depositions of non-party fact witnesses.            |
| September 30, 2025 | Last day to serve interrogatories, requests for admission, and RFPs. |
| November 30, 2025  | Disclosure of parties' initial expert reports, if any.               |
| December 31, 2025  | Disclosure of parties' rebuttal expert reports, if any.              |
| January 31, 2026   | Complete expert depositions.                                         |
| January 31, 2026   | Close of discovery.                                                  |
| February 28, 2026  | Complainant's brief, proposed findings of fact, and appendix.        |

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|----------------|-----------------------------------------------------------------------------------------------------------------|
| March 31, 2026 | Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix. |
| April 15, 2026 | Complainant's reply brief and responses to proposed findings of fact.                                           |

9. In making this joint Motion, the Parties here have limited their request to the smallest amount of time in which they presently believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly and to the extent possible. Further, the Parties believe that the foregoing is a realistic period to review the large volumes of material yet to be produced by the non-party witnesses, negotiate further stipulations of fact, where appropriate, and conduct depositions and expert discovery.

10. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

11. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Joint Motion to Extend Deadlines be granted.

Dated: August 18, 2025

HUTH REYNOLDS LLP

/s/ Mohini P.B. Rarrick

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Respectfully submitted,

BETANCOURT GRECO & EVANS LLC

/s/ Alton J. Evans, Jr.

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